

24PSCV04137 24PSCV04137

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Case Number: 24PSCV04137 Hearing Date: September 11, 2026 Dept: G

Plaintiffs Michael J. Hernandez and Irene

Hernandez's Motion to Enforce Settlement and Request for Attorney's Fees

Respondent: NO OPPOSITION

TENTATIVE

RULING

Plaintiffs

Michael J. Hernandez and Irene Hernandez's Motion to Enforce Settlement and Request for Attorney's Fees is GRANTED.

BACKGROUND

This

is a Song-Beverly action arising out of the purchase of an allegedly defective motor vehicle. On May 23, 2022, plaintiffs Michael J. Hernandez and Irene Hernandez (collectively, the Hernandezes) allegedly purchased an SUV manufactured by defendant FCA US LLC (FCA).

On

December 4, 2024, the Hernandezes filed the Complaint, alleging causes of action for (1) breach of express warranty in violation of the Song-Beverly Act, (2) breach of implied warranty in violation of the Song-Beverly Act, and (3) unlawful business practices in violation of the Unfair Competition Law.

On

March 12, 2026, the parties informed the court that they settled the case. On May 11, 2026, the court retained jurisdiction to enforce the settlement and/or enter judgment pursuant to the terms of the settlement.

On

July 27, 2026, the Hernandez Plaintiffs filed this motion to enforce settlement, which is unopposed. On

August 25, 2026, the court continued the hearing after FCA represented that it sent the settlement check to the wrong firm.

On

September 3, 2026, the Hernandez Plaintiffs dismissed the action with prejudice.

The

motion is set for a continued hearing on September 11, 2026.

ANALYSIS

The

Hernandez Plaintiffs move to enforce the terms of the out-of-court written settlement agreement. For the following reasons, the motion to enforce settlement is GRANTED.

Legal

Standard

The

Code of Civil Procedure provides a summary procedure that enables courts to enforce a settlement agreement by entering a judgment pursuant to the terms of the parties' settlement. It states, "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement."

(Code Civ. Proc., § 664.6, subd. (a).)

A writing is considered signed if signed by the party or an attorney who represents the party. (Code Civ. Proc.,

§ 664.6, subd. (b).) "If requested by

the parties, the court may retain jurisdiction over the parties to enforce the

settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a).)

Discussion

The

Hernandez Plaintiffs argue

that they are entitled to a judgment because FCA failed to pay \$20,000.00 as agreed in their settlement agreement.

The court agrees.

A

settlement agreement is a contract, and like any contract, it is enforceable only according to its terms. (See

Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 810,

holding, “The court cannot create the material terms of a settlement, as

opposed to deciding what terms the parties themselves have previously agreed upon.”].) Oral settlements placed on the

record under Section 664.6 and written settlements under Section 998 are

binding, enforceable, and governed by ordinary contract principles. (See Canaan Taiwanese Christian Church v.

All World Mission Ministries (2012) 211 Cal.App.4th 1115, 1122, fn. 3; see

also Berg v. Darden (2004) 120 Cal.App.4th 721, 731.)

In

contract law, when a party's failure to perform a contractual obligation

constitutes a material breach of the contract, the other party may be

discharged from its obligation to perform under the contract. (See Brown v. Grimes (2011) 192

Cal.App.4th 265, 277.) The two

obligations must also be dependent, meaning that the parties specifically

bargained that the failure to perform the one relieves the obligation to

perform the other. While materiality is

generally a question of fact, whether covenants are dependent or independent is

a matter of construing the agreement. (See

id. at 277–279.) If there is no

extrinsic evidence in aid of construction, the question is one of law for the

court. (See Verdier v. Verdier

(1955) 133 Cal.App.2d 325, 333.)

Here,

the parties entered into a release agreement outside of the court's presence

and affirmed the agreement in the court's presence. (See Kreymer Decl., Exh. A, p. 8; see

also 5/11/2026 Min. Order, p. 1.) Under the release agreement, FCA agreed to pay the Hernandez Plaintiffs a total of \$20,000.00, which was "expected" to be completed within 90 days the parties executed the agreement. (Kreymer Decl., Exh. A, p. 7.) As documented in the court's Minute Order, FCA should have paid the Hernandez Plaintiffs in mid-June 2026. (See 5/11/2026 Min. Order, p. 1.) Nevertheless, FCA failed to tender payment. (See Mot., p. 3.) At the first hearing on this motion, FCA represented that it sent the settlement check to the wrong firm. (See 8/25/2026 Min. Order, p. 1.) FCA did not file an opposition contesting the merits of the motion or the Hernandez Plaintiffs' entitlement to attorney's fees for bringing the motion. (See *Sexton v. Super. Ct.* (1997) 58 Cal.App.4th 1403, 1410, applying a local rule to hold that "[t]he failure to file opposition creates an inference that the motion or demurrer is meritorious.")

Therefore, the motion to enforce settlement is GRANTED, and JUDGMENT is ENTERED in favor of the Hernandez Plaintiffs. FCA is ORDERED to PAY the Hernandez Plaintiffs \$20,000.00 pursuant to the settlement agreement plus \$3,210.00 in sanctions.

CONCLUSION

For these reasons, the motion to enforce settlement is GRANTED, and defendant FCA US LLC is ORDERED to PAY sanctions to plaintiffs Michael J. Hernandez and Irene Hernandez in the total amount of \$3,210.00.

JUDGMENT

is ENTERED in favor of plaintiffs Michael J. Hernandez and Irene Hernandez and against defendant FCA US LLC in the total amount of \$20,000.00.